



water & sanitation

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REPUBLIC OF SOUTH AFRICA

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DRAFT WATER USE LICENCE APPLICATION SUMMARY

IDUTYWA CONFERENCE CENTRE AND ASSOCIATED INFRASTRUCTURE, MBASHE LOCAL MUNICIPALITY - WU51622

**NAME OF APPLICANT:
MBASHE LOCAL MUNICIPALITY**



Mbhashe
Local Municipality
WILLOWVALE | DUTYWA | ELLIOTDALE

**COMPILED BY:
ABANTU ENVIRONMENTAL SERVICES**



**ABANTU
ENVIRONMENTAL
SERVICES**

SIGNATURE:

DATE : 11 SEPTEMBER 2026

Applicant details

Table 1. The details of the primary contact person for the applicant (Mbhashe Municipality)

Name of applicant	Mr Mkhululi Nako
Postal address	454 Streatfield Street
Cell phone number	082 564 6446
Office number	063 689 0661
E-mail address	nakom@mbhashemum.gov.za

Person submitting application

Table 2. The details for the EAP undertaking the application process

Company	Abantu Environmental Services (Pty) Ltd
Name	Mr Sive Mlamla
Professional body	SACNASP (Pri.Sci.Nat) – Environmental Science
Date of registration	15 November 2017
Registration number	118495
Professional body	EAPASA (Reg.EAP (EAPASA))
Date of registration	30 September 2022
Registration number	2022/5204



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1. Background and purpose

Abantu Environmental Services (Pty) Ltd has been appointed by Chimora Group (Pty) Ltd henceforth referred to as Chimora Group on behalf of the Mbhashe Local Municipality for the application of a water use licence for the proposed Dutywa Conference Centre and associated infrastructure in the Mbhashe Municipal area. The applicant is Mbhashe Local Municipality, represented by Mr Mkhululi Nako, who will be the responsible party for the application process.

The water uses being applied for are Section 21 (c) and (i) due to the proposed conference centre being within 500m of a wetland/dam, along with a pipeline and access road traversing a stream (Mputi river) on-site. The installation of a sewer pipeline across a stream shall obviating the a General Authorisation. The WULA (ref: WU51622) was lodged on the e-WULAAS website on the 3rd of July 2026.

The development is also undergoing an Environmental Authorisation process in terms of the National Environmental Management Act, 1998 (Act No. 107 of 1998), (the Act) as amended and the Environmental Impact Assessment Regulations, 2014 as amended (the Regulations).

2. Location of water uses

The development area is slightly north of the small town of Dutywa in the Mbhashe Local Municipality, approximately 32°5'10.36"S 28°18'13.78"E from its centre (**Figure 1**). The development is located in the T90C Quaternary Catchment, within the Mzimvubu-Tsitsikamma Water Management Area. There is an abundance of drainage lines at the proposed site, as well as a large dam downslope of the proposed conference centre (see **Figure 2**). The proposed activities (see **Table 3**) are in close proximity to watercourses.



Figure 1. Locality of the proposed development site

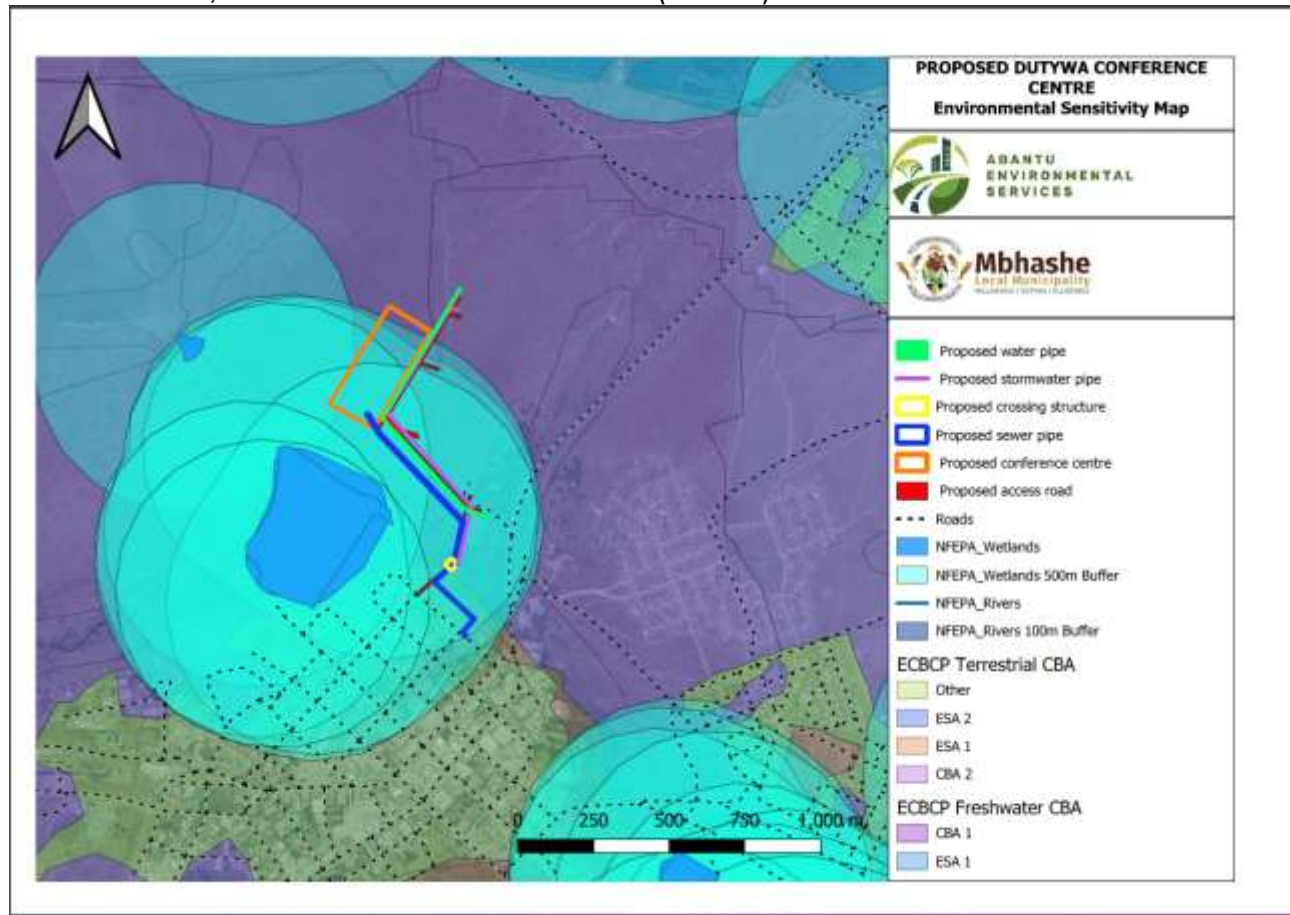


Figure 2. The aquatic sensitivity map for the proposed development

Table 3. Property details

Property description	Title Deed number	Owner
Proposed Conference Centre		
Farm 539, Portion 0, C09300010000053900000.	G70/1933	Mbashe Municipality
Farm RE/1, Portion 0, C09300010000000100000.	G70/1933	Mbashe Municipality
Farm 541, Portion 0, C09300010000054100000.	G70/1933	Mbashe Municipality
Farm 542, Portion 0, C09300010000054200000.	G70/1933	Mbashe Municipality
Farm 570, Portion 0, C09300010000057000000.	G70/1933	Mbashe Municipality
Farm 595, Portion 0, C09300010000059500000.	G70/1933	Mbashe Municipality
Proposed Sewer Pipeline		
Farm 4437, Portion 0, C093000100004437000000.	G70/1933	Mbashe Municipality
Farm RE/1, Portion 0, C09300010000000100000.	G70/1933	Mbashe Municipality
Farm 6092, Portion 0, C093000100006092000000.	G70/1933	Mbashe Municipality
Farm 6085, Portion 0, C093000100006085000000.	G70/1933	Mbashe Municipality
Farm 6093, Portion 0, C093000100006093000000.	G70/1933	Mbashe Municipality
Farm 5441, Portion 0, C093000100005441000000.	G70/1933	Mbashe Municipality
Farm 5470, Portion 0, C093000100005470000000.	G70/1933	Mbashe Municipality
Farm 5472, Portion 0, C093000100005472000000.	G70/1933	Mbashe Municipality
Farm 4417, Portion 0, C093000100004417000000.	G70/1933	Mbashe Municipality
Farm 649, Portion 0, C093000100000649000000.	G70/1933	Mbashe Municipality
Farm 648, Portion 0, C093000100000648000000.	G70/1933	Mbashe Municipality
Farm 647, Portion 0, C093000100000647000000.	G70/1933	Mbashe Municipality
Farm 646, Portion 0, C093000100000646000000.	G70/1933	Mbashe Municipality
Farm 645, Portion 0, C093000100000645000000.	G70/1933	Mbashe Municipality
Farm 644, Portion 0, C093000100000644000000.	G70/1933	Mbashe Municipality

Property description	Title Deed number	Owner
Farm 643, Portion 0, C09300010000064300000.	G70/1933	Mbhashe Municipality
Farm 642, Portion 0, C09300010000064200000.	G70/1933	Mbhashe Municipality
Farm 621, Portion 0, C09300010000062100000.	G70/1933	Mbhashe Municipality
Farm 539, Portion 0, C09300010000053900000.	G70/1933	Mbhashe Municipality
Proposed Water Pipeline		
Farm 4071, Portion 0, C09300010000407100000.	G70/1933	Mbhashe Municipality
Farm 5468, Portion 0, C09300010000546800000.	G70/1933	Mbhashe Municipality
Farm 656, Portion 0, C09300010000065600000.	G70/1933	Mbhashe Municipality
Farm 655, Portion 0, C09300010000065500000.	G70/1933	Mbhashe Municipality
Farm RE/5466, Portion 0, C09300010000546600000.	G70/1933	Mbhashe Municipality
Farm 654, Portion 0, C09300010000065400000.	G70/1933	Mbhashe Municipality
Farm 653, Portion 0, C09300010000065300000.	G70/1933	Mbhashe Municipality
Farm 5471, Portion 0, C09300010000547100000.	G70/1933	Mbhashe Municipality
Farm 5467, Portion 0, C09300010000546700000.	G70/1933	Mbhashe Municipality
Farm 652, Portion 0, C09300010000065200000.	G70/1933	Mbhashe Municipality
Farm 651, Portion 0, C09300010000065100000.	G70/1933	Mbhashe Municipality
Farm 650, Portion 0, C09300010000065000000.	G70/1933	Mbhashe Municipality
Farm 649, Portion 0, C09300010000064900000.	G70/1933	Mbhashe Municipality
Farm 648, Portion 0, C09300010000064800000.	G70/1933	Mbhashe Municipality
Farm 637, Portion 0, C09300010000063700000.	G70/1933	Mbhashe Municipality
Farm 638, Portion 0, C09300010000063800000.	G70/1933	Mbhashe Municipality
Farm 623, Portion 0, C09300010000062300000.	G70/1933	Mbhashe Municipality
Farm 619, Portion 0, C09300010000061900000.	G70/1933	Mbhashe Municipality
Farm 620, Portion 0, C09300010000062000000.	G70/1933	Mbhashe Municipality
Farm 596, Portion 0, C09300010000059600000.	G70/1933	Mbhashe Municipality
Farm 595, Portion 0, C09300010000059500000.	G70/1933	Mbhashe Municipality
Farm 570, Portion 0, C09300010000057000000.	G70/1933	Mbhashe Municipality
Farm 571, Portion 0, C09300010000057100000.	G70/1933	Mbhashe Municipality
Farm 542, Portion 0, C09300010000054200000.	G70/1933	Mbhashe Municipality
Farm 543, Portion 0, C09300010000054300000.	G70/1933	Mbhashe Municipality
Farm RE/1, Portion 0, C09300010000000100000	G70/1933	Mbhashe Municipality
Proposed Access Road		
Farm 5441, Portion 0, C09300010000544100000.	G70/1933	Mbhashe Municipality
Farm 422, Portion 0, C09300010000042200000.	G70/1933	Mbhashe Municipality
Farm 6085, Portion 0, C09300010000608500000.	G70/1933	Mbhashe Municipality
Farm 6093, Portion 0, C09300010000609300000.	G70/1933	Mbhashe Municipality
Farm RE/1, Portion 0, C09300010000000100000.	G70/1933	Mbhashe Municipality
Farm 5472, Portion 0, C09300010000547200000.	G70/1933	Mbhashe Municipality
Farm 5470, Portion 0, C09300010000547000000.	G70/1933	Mbhashe Municipality
Farm RE/5466, Portion 0, C09300010000546600000.	G70/1933	Mbhashe Municipality
Farm 655, Portion 0, C09300010000065500000.	G70/1933	Mbhashe Municipality
Farm 653, Portion 0, C09300010000065300000.	G70/1933	Mbhashe Municipality
Farm 5467, Portion 0, C09300010000546700000.	G70/1933	Mbhashe Municipality
Farm 651, Portion 0, C09300010000065100000.	G70/1933	Mbhashe Municipality
Farm 650, Portion 0, C09300010000065000000.	G70/1933	Mbhashe Municipality
Farm 636, Portion 0, C09300010000063600000.	G70/1933	Mbhashe Municipality
Farm 637, Portion 0, C09300010000063700000.	G70/1933	Mbhashe Municipality
Farm 638, Portion 0, C09300010000063800000.	G70/1933	Mbhashe Municipality
Farm 623, Portion 0, C09300010000062300000.	G70/1933	Mbhashe Municipality
Farm 619, Portion 0, C09300010000061900000.	G70/1933	Mbhashe Municipality
Farm 618, Portion 0, C09300010000061800000.	G70/1933	Mbhashe Municipality
Farm 617, Portion 0, C09300010000061700000.	G70/1933	Mbhashe Municipality
Farm 620, Portion 0, C09300010000062000000.	G70/1933	Mbhashe Municipality

Property description	Title Deed number	Owner
Farm 597, Portion 0, C09300010000059700000.	G70/1933	Mbhashe Municipality
Farm 596, Portion 0, C09300010000059600000.	G70/1933	Mbhashe Municipality
Farm 595, Portion 0, C09300010000059500000.	G70/1933	Mbhashe Municipality
Farm 571, Portion 0, C09300010000057100000.	G70/1933	Mbhashe Municipality
Farm 543, Portion 0, C09300010000054300000.	G70/1933	Mbhashe Municipality
Farm 544, Portion 0, C09300010000054400000.	G70/1933	Mbhashe Municipality
Farm 546, Portion 0, C09300010000054600000.	G70/1933	Mbhashe Municipality
Farm 547, Portion 0, C09300010000054700000.	G70/1933	Mbhashe Municipality
Stormwater Drainage Infrastructure		
Farm RE/1, Portion 0, C09300010000000100000.	G70/1933	Mbhashe Municipality
Farm 4423, Portion 0, C09300010000442300000.	G70/1933	Mbhashe Municipality
Farm 5470, Portion 0, C09300010000547000000.	G70/1933	Mbhashe Municipality
Farm RE/5466, Portion 0, C09300010000546600000.	G70/1933	Mbhashe Municipality
Farm 654, Portion 0, C09300010000065400000.	G70/1933	Mbhashe Municipality
Farm 635, Portion 0, C09300010000063500000.	G70/1933	Mbhashe Municipality
Farm 636, Portion 0, C09300010000063600000.	G70/1933	Mbhashe Municipality
Farm 637, Portion 0, C09300010000063700000.	G70/1933	Mbhashe Municipality
Farm 624, Portion 0, C09300010000062400000.	G70/1933	Mbhashe Municipality
Farm 623, Portion 0, C09300010000062300000.	G70/1933	Mbhashe Municipality
Farm 617, Portion 0, C09300010000061700000.	G70/1933	Mbhashe Municipality
Farm 618, Portion 0, C09300010000061800000.	G70/1933	Mbhashe Municipality
Farm 619, Portion 0, C09300010000061900000.	G70/1933	Mbhashe Municipality
Farm 598, Portion 0, C09300010000059800000.	G70/1933	Mbhashe Municipality
Farm 597, Portion 0, C09300010000059700000.	G70/1933	Mbhashe Municipality
Farm 596, Portion 0, C09300010000059600000.	G70/1933	Mbhashe Municipality
Farm 595, Portion 0, C09300010000059500000.	G70/1933	Mbhashe Municipality
Farm 570, Portion 0, C09300010000057000000.	G70/1933	Mbhashe Municipality
Farm 571, Portion 0, C09300010000057100000.	G70/1933	Mbhashe Municipality
Farm 543, Portion 0, C09300010000054300000.	G70/1933	Mbhashe Municipality
Proposed Crossing Structure (low passing bridge / culvert)		
Farm RE/1, Portion 0, C09300010000000100000.	G70/1933	Mbhashe Municipality

3. Administrative documents and technical reports submitted by applicants

3.1 Administrative documents

3.1.1 List all administrative documents relevant to the application as per WULA regulation

The process of the water use application requires a number of important administrative document such as the list observed in **Table 4** below.

Table 4. Administrative documents relevant to the application

Administrative documents	Submitted	
	Yes	No
Certified ID copy of the applicant		✓
Proof of Payment Application Fee		✓
Copy of Registration Form (Property, Part 1, Part 2, Supplementary Forms)		✓ Completed online

Administrative documents	Submitted	
	Yes	No
Certified ID/Passport Copy of at least one member of the Company, business, partnership or community		✓
Certified ID/Passport Copy of the Water User Primary Contact Person		✓
Certified Passport copy of the applicant		✓
Company Registration certificate		✓
Motivational Report to address sec 27 and proof that proposed water use will redress the result of past racial and gender discrimination /BBBEE status		✓
Other Documents		✓
Consultant Appointment Letter		✓
Title Deed		✓

3.2 Reports and other technical documents

3.2.1 List of all the technical document relevant to the application as per WULA Regulation or any other information requested formally indicate compiler and date of compilation

The WULA process requires technical documentation (**Table 5**) that details the variety of construction procedures that will define the proposed project as well as its environmental implications. Due to the EA phase being run parallel to the WULA phase, some documentation has yet to be compiled and some are currently in the process of being compiled.

Table 5. The technical documents required for the WULA

Technical documents	Compiler	Date of compilation
Master Layout Plan showing all proposed activities in relation to the regulated areas of affected watercourses (e.g., 1–100-year floodline or riparian habitat, which ever one is the greatest/ 100m from the edge of the watercourse/ 500m radius from the edge of the delineated boundary of a wetland) and recommended buffers	Abantu Environmental Services	31 August 2026
Method statement	Chimora Group	In Progress
Aquatic Impact Assessment Study done by SACNASP-registered scientists, use relevant river health indices (e.g. REMP/SASS5, IHI, IHAS, GAI) and methods to determine PES, EIS, Impact Assessment and Mitigation Measures, Recommendations and conclusion	Abantu Environmental Services	In Progress
Wetland Delineation and Assessment Study, where wetlands are involved or delineated done by SACNASP-registered scientists, using relevant wet health indices and methods to determine PES, EIS, classify the delineated HGM unit(s), Impact Assessment and Mitigation Measures, Recommendations, and conclusion	Abantu Environmental Services	
Stormwater Management Plan	Abantu Environmental Services	28 August 2026
Environmental Management Programme	Abantu Environmental Services	28 August 2026
Design Report	Chimora Group	In Progress
Rehabilitation and Monitoring Plan	Abantu Environmental Services	28 August 2026
WULA Summary Report	Abantu Environmental Services	18 August 2026
Fully completed supplementary information questionnaire for Section 21(c)&(i) (DW775)	Abantu Environmental Services	31 August 2026

Public Participation Report: Proof of Public participation or Local Newspaper Advertisement Notice in terms of the National Water Act (60 days commenting period) (indicative of name and date of the publication). Issues raised by Interested & Affected Parties (I&APs) and a response table must be provided	Abantu Environmental Services	14 September 2026
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4. Project Description

The Mbashe Local Municipality seeks to construct an all-encompassing conference centre with its associated infrastructure so that important gatherings of the people can be had in-order to achieve various goals that the municipality might have for improving the economy and quality of life of the people. The proposed development comprises of the following:

- Proposed conference centre
- Proposed Sewer Pipe - 160mm Class 34 UPVC and Galvanised Steel Sewer Pipe
- Proposed Water Pipe - main - 8 m servitude
- Proposed Concrete Stormwater Pipes- 450mm – 600mm Ø 100D
- Proposed Sewer Manholes
- Proposed Sw Catchpit/Manhole
- Proposed concrete/paved/tar access road and a crossing structure (bridge/culvert)

Dimensions

- ~1300m (1.3km) length
- width of 3700mm x 2 lanes (7.4m + 1.65m = 9.5m)
- shoulders including sidewalks;
 - sidewalks = 1200mm
 - stormwater drains and should of 465mm
- **Layers works**
- 60mm thick 35mpa interlocking brick
- paving over 20mm compacted sand
- 150mm g5 material stabilised with 3%
- cement compacted to 98% mod aashto
- 150mm g7 material compacted to
- 95% mo150mm in-situ compacted to
- 93% mod aashtod aashto

The investigation of the site revealed that the site, amongst other terrain features, is drained by the ephemeral Mputi river. The conference centre has associated infrastructure that will cross this river such as the sewer, water and stormwater pipelines as well as the proposed access road with its crossing structure and/or culvert. This indicates a direct impact on the watercourse. Further to the direct impact to a watercourse, the entire site is within 500m of the NFEPA delineated dam to the north of Dutywa (**Figure 3**), which could have potential cumulative impacts to this dam as well as the NFEPA delineated Nqabara river further downstream of the development.



Figure 3. A map of the proposed infrastructure and its proximity to watercourses

5. Methods statement (only for c and i activity) and mining method / industrial process

The proposed conference centre will be constructed approximately 186 m north of the NFEPA delineated dam in the small town of Dutywa. The distance will allow for an undisturbed dam as the construction activity is unlikely to reach this dam and impact it in any adverse way. Therefore, watercourse degradation is not envisaged. The associated infrastructure will have a direct impact on the Mputi river supplying the dam on-site. This is due to the infrastructure crossing a point on the stream, south-east of the dam.

No mining will be done for this project.

6. Stormwater Management Plan

The construction of any infrastructure requires space on the surface of the earth where vital geomorphological functions need to occur. These are mechanisms include mechanisms such as drainage lines and the absorption of freshwater by the soil among other mechanisms. Due to this, stormwater management needs to be incorporated into the design of any construction activity and that design needs to legislate for how stormwater will be managed during the construction phase as well as the operations phase. Some of the ways that stormwater can be managed are as follows:

Construction Phase

The Contractor shall submit to the Engineer for approval, proposals to control stormwater drainage and prevent negative impacts on the environment and infrastructure during construction and rehabilitation. This shall be implemented and maintained throughout the construction and rehabilitation period.

The following general guidelines are to be adhered to:

- Remove only vegetation essential for construction and do not allow any disturbance to the adjoining natural vegetation cover.
- Ensure that measures are in place to control the flow of excess water so that it does not impact surface vegetation.
- The stormwater drainage network system must be kept separate from the wastewater (water containing waste) system.
- The accumulation of water on the surface must be prevented. The drainage of the surface must be done in such a way that stormwater will be led away quickly and efficiently without any erosion taking place.
- Runoff from roads must be managed to avoid erosion and pollution problems both on and off site.
- Prevent stormwater or contaminated water directly entering any watercourse.
- Install waste traps if necessary, to catch litter conveyed by surface runoff.

The following specific recommendations arising from the specialist studies and Basic Assessment Report must be included in the Contractor's Stormwater Management Plan:

- Storm water control measures must be implemented with all storm water generated within disturbed earthwork areas channeled to temporary, constructed settling ponds which allow the water to naturally filter back to the watercourse after settling.
- Storm water retention and other constructed settling ponds must be suitably sited or protected so that river channel high flows will not cause flooding of the ponds. Siting of such ponds must be undertaken by a suitably qualified specialist who must also provide advice as to size and maintenance of the ponds.
- "Trench-breakers", which are in-trench barriers, should be installed within any trench excavations to minimise the interception and accumulation of surface runoff water from upslope areas.
- Where construction activities take place within flood lines of watercourses, temporary berms must be formed to ensure the construction site and disturbed soils are protected from flooding, storm-flows and erosion.

Operational Phase

- The stormwater will be drained by the constructed stormwater infrastructure.

7. Rehabilitation Plan

As per the recommendations of the aquatic study, all watercourses and wetlands should be treated as “no go areas” and no construction machinery or vehicles should be parked within wetland buffers. Therefore, should watercourses or wetlands be disturbed during construction, this must be rehabilitated to a stable condition, ecologically similar to or better than that existing prior to construction. A freshwater ecologist should specify, supervise, and approve such activities.

The following general management measures must be implemented in order to avoid disturbance of the river and wetland habitats. These are to be applied in conjunction with the EMPr.

- Construction camps, storage areas, soil stockpile areas and laydown areas must be located at least 20m away from the edge of all delineated watercourses
- Disturbed/compacted areas must be ripped and revegetated
- Prohibit the dumping of spoil material within surrounding wetland areas. Spoil material must be appropriately disposed of at a registered waste disposal facility
- Any topsoil and indigenous vegetation removed from the direct construction footprint must be stored at the designated stockpile area for use in future rehabilitation activities
- Cleared vegetation and soils which will not be utilised for rehabilitation purposes must be disposed of at a registered waste disposal facility
- Once construction has been completed all construction waste, rubble, and equipment must be removed from the study area
- Limit construction activities to the dry winter months in order to reduce erosion and sedimentation as a result of stormwater runoff
- Install silt fences/traps downstream of the road crossing area during construction activities to trap any sediment produced during construction activities. The ECO must be consulted on the location of silt fences, and silt fences must not result in any unnecessary disturbance to the watercourses

Site clean up

- The Contractor shall ensure that all temporary structures, equipment, materials, waste and facilities used are removed upon completion of the contract. The site clean-up must be to the satisfaction of the Environmental Control Officer (ECO). A site closure checklist will only be given once site has been closed

Rehabilitation

- In the event of damage occurring to the environment due to the irresponsible actions of the Contractor, (including non-compliance with the EMPr), rehabilitation may be required as decided upon by the ECO and the Engineer in consultation. The completed rehabilitation is to be to the satisfaction of the ECO.
- The cost of such rehabilitation will be for the Contractor's account and no extension of time will be granted. Any damage to the environment caused as a result of non-compliance with the EMPr shall be made good by the Contractors and/or Engineers.
- Implementation of the aquatic ecosystem rehabilitation plan must be undertaken as soon as the aquatic ecosystem areas are impacted and will differ during the pre-construction, construction and operational phases of the pipeline.

8. Water Uses applied for

The application includes the following water uses.

Table 6. Water Uses applied for

Water use(s) activities	Purpose	Capacity/ Volume (m ³ , tonnes and/or m ³ /annum)/ dimension	Property Description	Co-ordinates
Section 21 (c) & (i)				
Impeding or diverting flow / Altering a watercourse (Infrastructure within 500m of a wetland / dam)	Construction of a conference centre with all of its associated infrastructure	N/A	<u>Conference Centre:</u> - Farm 539, Portion 0, C09300010000053900000. - Farm RE/1, Portion 0, C09300010000000100000. - Farm 541, Portion 0, C09300010000054100000. - Farm 542, Portion 0, C09300010000054200000. - Farm 570, Portion 0, C09300010000057000000. - Farm 595, Portion 0, C09300010000059500000.	<u>Conference Centre:</u> 32°5'13.91"S 28°18'7.27"E 32°5'3.42"S 28°18'14.80"E 32°5'6.18"S 28°18'20.06"E 32°5'16.48"S 28°18'12.91"E
			<u>Access Road:</u> - Farm 5441, Portion 0, C09300010000544100000. - Farm 422, Portion 0, C09300010000042200000. - Farm 6085, Portion 0, C09300010000608500000.	<u>Access Road:</u> 32°5'34.00"S 28°18'18.8"E 32°5'27.65"S 28°18'23.79"E 32°5'21.00"S 28°18'20.50"E 32°5'14.99"S 28°18'14.72"E

Water use(s) activities	Purpose	Capacity/ Volume (m ³ , tonnes and/or m ³ /annum)/ dimension	Property Description	Co-ordinates
			• Farm 6093, Portion 0, C09300010000609300000. • Farm RE/1, Portion 0, C093000100000000100000. • Farm 5472, Portion 0, C09300010000547200000. • Farm 5470, Portion 0, C09300010000547000000. • Farm RE/5466, Portion 0, C09300010000546600000. • Farm 655, Portion 0, C09300010000065500000. • Farm 653, Portion 0, C09300010000065300000. • Farm 5467, Portion 0, C09300010000546700000. • Farm 651, Portion 0, C09300010000065100000. • Farm 650, Portion 0, C09300010000065000000. • Farm 636, Portion 0, C09300010000063600000. • Farm 637, Portion 0, C09300010000063700000. • Farm 638, Portion 0, C09300010000063800000.	

Water use(s) activities	Purpose	Capacity/ Volume (m ³ , tonnes and/or m ³ /annum)/ dimension	Property Description	Co-ordinates
			• Farm 623, Portion 0, C09300010000062300000. • Farm 619, Portion 0, C09300010000061900000. • Farm 618, Portion 0, C09300010000061800000. • Farm 617, Portion 0, C09300010000061700000. • Farm 620, Portion 0, C09300010000062000000. • Farm 597, Portion 0, C09300010000059700000. • Farm 596, Portion 0, C09300010000059600000. • Farm 595, Portion 0, C09300010000059500000. • Farm 571, Portion 0, C09300010000057100000. • Farm 543, Portion 0, C09300010000054300000. • Farm 544, Portion 0, C09300010000054400000. • Farm 546, Portion 0, C09300010000054600000. • Farm 547, Portion 0, C09300010000054700000.	
			<u>Watercourse Crossing Structure:</u>	<u>Watercourse Crossing Structure:</u>

Water use(s) activities	Purpose	Capacity/ Volume (m ³ , tonnes and/or m ³ /annum)/ dimension	Property Description	Co-ordinates
			Farm RE/1, Portion 0, C09300010000000100000	32°5'30.99"S 28°18'21.84"E 32°5'30.37"S 28°18'22.72"E 32°5'31.07"S 28°18'23.40"E 32°5'31.65"S 28°18'22.49"E
			<u>Sewer Pipeline:</u> - Farm 4437, Portion 0, C09300010000443700000. - Farm RE/1, Portion 0, C09300010000000100000. - Farm 6092, Portion 0, C09300010000609200000. - Farm 6085, Portion 0, C09300010000608500000. - Farm 6093, Portion 0, C09300010000609300000. - Farm 5441, Portion 0, C09300010000544100000. - Farm 5470, Portion 0, C09300010000547000000. - Farm 5472, Portion 0, C09300010000547200000. - Farm 4417, Portion 0, C09300010000441700000. - Farm 649, Portion 0, C09300010000064900000.	<u>Sewer Pipeline:</u> 32° 5'38.74"S 28°18'24.45"E 32° 5'38.28"S 28°18'24.23"E 32° 5'36.90"S 28°18'25.58"E 32° 5'32.94"S 28°18'20.58"E 32° 5'31.06"S 28°18'23.01"E 32° 5'26.52"S 28°18'24.20"E 32° 5'17.06"S 28°18'13.58"E 32° 5'15.00"S 28°18'12.15"E

Water use(s) activities	Purpose	Capacity/ Volume (m ³ , tonnes and/or m ³ /annum)/ dimension	Property Description	Co-ordinates
			• Farm 648, Portion 0, C09300010000064800000. • Farm 647, Portion 0, C09300010000064700000. • Farm 646, Portion 0, C09300010000064600000. • Farm 645, Portion 0, C09300010000064500000. • Farm 644, Portion 0, C09300010000064400000. • Farm 643, Portion 0, C09300010000064300000. • Farm 642, Portion 0, C09300010000064200000. • Farm 621, Portion 0, C09300010000062100000. • Farm 539, Portion 0, C09300010000053900000.	
			<u>Water Pipeline:</u> • Farm 4071, Portion 0, C09300010000407100000. • Farm 5468, Portion 0, C09300010000546800000. • Farm 656, Portion 0, C09300010000065600000.	<u>Water Pipeline:</u> • 32°5'26.10"S 28°18'27.46"E • 32°5'25.13"S 28°18'24.43"E • 32°5'15.43"S 28°18'13.97"E

Water use(s) activities	Purpose	Capacity/ Volume (m ³ , tonnes and/or m ³ /annum)/ dimension	Property Description	Co-ordinates
			• Farm 655, Portion 0, C09300010000065500000. • Farm RE/5466, Portion 0, C093000100000546600000. • Farm 654, Portion 0, C09300010000065400000. • Farm 653, Portion, C09300010000065300000. • Farm 5471, Portion 0, C09300010000547100000. • Farm 5467, Portion 0, C09300010000546700000. • Farm 652, Portion 0, C09300010000065200000. • Farm 651, Portion 0, C09300010000065100000. • Farm 650, Portion 0, C09300010000065000000. • Farm 649, Portion 0, C09300010000064900000. • Farm 648, Portion 0, C09300010000064800000. • Farm 637, Portion 0, C09300010000063700000. • Farm 638, Portion 0, C09300010000063800000.	

Water use(s) activities	Purpose	Capacity/ Volume (m ³ , tonnes and/or m ³ /annum)/ dimension	Property Description	Co-ordinates
			• Farm 623, Portion 0, C09300010000062300000. • Farm 619, Portion 0, C09300010000061900000. • Farm 620, Portion 0, C09300010000062000000. • Farm 596, Portion 0, C09300010000059600000. • Farm 595, Portion 0, C09300010000059500000. • Farm 570, Portion 0, C09300010000057000000. • Farm 571, Portion 0, C09300010000057100000. • Farm 542, Portion 0, C09300010000054200000. • Farm 543, Portion 0, C09300010000054300000. • Farm RE/1, Portion 0, C09300010000000100000	
			<u>Stormwater Drainage Installation:</u> • Farm RE/1, Portion 0, C09300010000000100000. • Farm 4423, Portion 0, C09300010000442300000.	<u>Stormwater Drainage Installation:</u> • 32°5'31.08"S 28°18'23.52"E • 32°5'24.92"S 28°18'25.29"E • 32°5'14.87"S 28°18'14.64"E

Water use(s) activities	Purpose	Capacity/ Volume (m ³ , tonnes and/or m ³ /annum)/ dimension	Property Description	Co-ordinates
			• Farm 5470, Portion 0, C09300010000547000000. • Farm RE/5466, Portion 0, C09300010000546600000. • Farm 654, Portion 0, C09300010000065400000. • Farm 635, Portion 0, C09300010000063500000. • Farm 636, Portion 0, C09300010000063600000. • Farm 637, Portion 0, C09300010000063700000. • Farm 624, Portion 0, C09300010000062400000. • Farm 623, Portion 0, C09300010000062300000. • Farm 617, Portion 0, C09300010000061700000. • Farm 618, Portion 0, C09300010000061800000. • Farm 619, Portion 0, C09300010000061900000. • Farm 598, Portion 0, C09300010000059800000. • Farm 597, Portion 0, C09300010000059700000.	

Water use(s) activities	Purpose	Capacity/ Volume (m³, tonnes and/or m³/annum)/ dimension	Property Description	Co-ordinates
			• Farm 596, Portion 0, C09300010000059600000. • Farm 595, Portion 0, C09300010000059500000. • Farm 570, Portion 0, C09300010000057000000. • Farm 571, Portion 0, C09300010000057100000. • Farm 543, Portion 0, C09300010000054300000.	
Impeding or diverting flow / Altering a watercourse (Infrastructure crossing a watercourse)	Improving the town's road and bulk civil service infrastructure	N/A	Access Road: • Farm 5441, Portion 0, C09300010000544100000. • Farm 422, Portion 0, C09300010000042200000. • Farm 6085, Portion 0, C09300010000608500000. • Farm 6093, Portion 0, C09300010000609300000. • Farm RE/1, Portion 0, C09300010000000100000. • Farm 5472, Portion 0, C09300010000547200000. • Farm 5470, Portion 0, C09300010000547000000.	Access Road: • 32°5'34.00"S 28°18'18.8"E • 32°5'27.65"S 28°18'23.79"E • 32°5'21.00"S 28°18'20.50"E • 32°5'14.99"S 28°18'14.72"E

Water use(s) activities	Purpose	Capacity/ Volume (m ³ , tonnes and/or m ³ /annum)/ dimension	Property Description	Co-ordinates
			• Farm RE/5466, Portion 0, C09300010000546600000. • Farm 655, Portion 0, C09300010000065500000. • Farm 653, Portion 0, C09300010000065300000. • Farm 5467, Portion 0, C09300010000546700000. • Farm 651, Portion 0, C09300010000065100000. • Farm 650, Portion 0, C09300010000065000000. • Farm 636, Portion 0, C09300010000063600000. • Farm 637, Portion 0, C09300010000063700000. • Farm 638, Portion 0, C09300010000063800000. • Farm 623, Portion 0, C09300010000062300000. • Farm 619, Portion 0, C09300010000061900000. • Farm 618, Portion 0, C09300010000061800000. • Farm 617, Portion 0, C09300010000061700000.	

Water use(s) activities	Purpose	Capacity/ Volume (m ³ , tonnes and/or m ³ /annum)/ dimension	Property Description	Co-ordinates
			• Farm 620, Portion 0, C09300010000062000000. • Farm 597, Portion 0, C09300010000059700000. • Farm 596, Portion 0, C09300010000059600000. • Farm 595, Portion 0, C09300010000059500000. • Farm 571, Portion 0, C09300010000057100000. • Farm 543, Portion 0, C09300010000054300000. • Farm 544, Portion 0, C09300010000054400000. • Farm 546, Portion 0, C09300010000054600000. • Farm 547, Portion 0, C09300010000054700000.	
			<u>Sewer Pipeline:</u> • Farm 4437, Portion 0, C09300010000443700000. • Farm RE/1, Portion 0, C09300010000000100000. • Farm 6092, Portion 0, C09300010000609200000.	<u>Sewer Pipeline:</u> • 32° 5'38.74"S 28°18'24.45"E • 32° 5'38.28"S 28°18'24.23"E • 32° 5'36.90"S 28°18'25.58"E • 32° 5'32.94"S 28°18'20.58"E • 32° 5'31.06"S 28°18'23.01"E • 32° 5'26.52"S 28°18'24.20"E • 32° 5'17.06"S 28°18'13.58"E

Water use(s) activities	Purpose	Capacity/ Volume (m ³ , tonnes and/or m ³ /annum)/ dimension	Property Description	Co-ordinates
			• Farm 6085, Portion 0, C09300010000608500000. • Farm 6093, Portion 0, C09300010000609300000. • Farm 5441, Portion 0, C09300010000544100000. • Farm 5470, Portion 0, C09300010000547000000. • Farm 5472, Portion 0, C09300010000547200000. • Farm 4417, Portion 0, C09300010000441700000. • Farm 649, Portion 0, C0930001000064900000. • Farm 648, Portion 0, C0930001000064800000. • Farm 647, Portion 0, C0930001000064700000. • Farm 646, Portion 0, C0930001000064600000. • Farm 645, Portion 0, C0930001000064500000. • Farm 644, Portion 0, C0930001000064400000. • Farm 643, Portion 0, C0930001000064300000.	• 32° 5'15.00"S 28°18'12.15"E

Water use(s) activities	Purpose	Capacity/ Volume (m³, tonnes and/or m³/annum)/ dimension	Property Description	Co-ordinates
			- Farm 642, Portion 0, C09300010000064200000. - Farm 621, Portion 0, C09300010000062100000. - Farm 539, Portion 0, C09300010000053900000.	
			<u>Stormwater Drainage Installation:</u> - Farm RE/1, Portion 0, C09300010000000100000. - Farm 4423, Portion 0, C09300010000442300000. - Farm 5470, Portion 0, C09300010000547000000. - Farm RE/5466, Portion 0, C09300010000546600000. - Farm 654, Portion 0, C09300010000065400000. - Farm 635, Portion 0, C09300010000063500000. - Farm 636, Portion 0, C09300010000063600000. - Farm 637, Portion 0, C09300010000063700000. - Farm 624, Portion 0, C09300010000062400000.	<u>Stormwater Drainage Installation:</u> 32°5'31.08"S 28°18'23.52"E 32°5'24.92"S 28°18'25.29"E 32°5'14.87"S 28°18'14.64"E

Water use(s) activities	Purpose	Capacity/ Volume (m ³ , tonnes and/or m ³ /annum)/ dimension	Property Description	Co-ordinates
			• Farm 623, Portion 0, C09300010000062300000. • Farm 617, Portion 0, C09300010000061700000. • Farm 618, Portion 0, C09300010000061800000. • Farm 619, Portion 0, C09300010000061900000. • Farm 598, Portion 0, C09300010000059800000. • Farm 597, Portion 0, C09300010000059700000. • Farm 596, Portion 0, C09300010000059600000. • Farm 595, Portion 0, C09300010000059500000. • Farm 570, Portion 0, C09300010000057000000. • Farm 571, Portion 0, C09300010000057100000. • Farm 543, Portion 0, C09300010000054300000.	

9. Impacts and mitigation measures

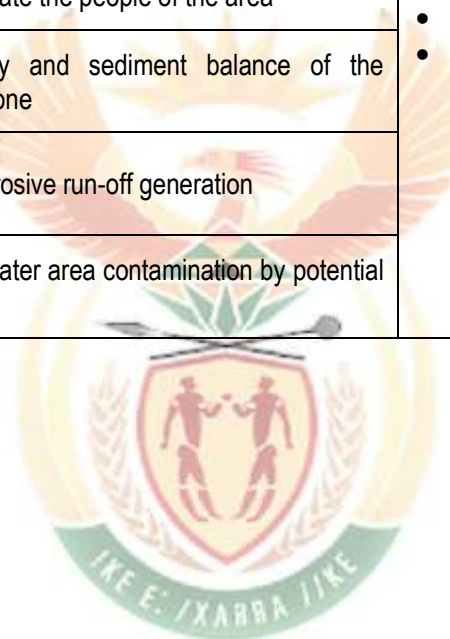
The potential impacts and mitigation measures that are expected from the proposed activities are presented in **Table 7**.

Table 7. Summary of impacts and mitigation measures

Water Use activity	Possible causes of the impacts of the activities Impacts to the water resources	Possible Impacts to the water resource and other water users	Mitigation Measures
Construction Phase			
Section 21 (c) & (i)	Excavation, vegetation clearance and structure placement will disturb soils and channel sediments.		• Limit the extent of vegetation clearance and soil disturbance to only essential construction areas. • The implementation of the development should be during the dry season to minimise sediment load contributions • Stockpile excavated material away from the river channel and stabilise with appropriate cover to prevent return flow to the watercourse. • Minimise construction works within and along the watercourse, where the development is proposed. • Clearly demarcate the approved working footprint and treat areas outside it as no-go areas. • Locate construction camps, laydown areas, and materials stockpiles outside of the riparian zone. • Use existing access routes where practicable. • Avoid unnecessary removal of indigenous riparian vegetation. • Rehabilitate disturbed areas immediately after construction.
	Construction activities, plant and machinery movement and the removal of riparian vegetation and soil disturbance will weaken bank cohesion, increasing susceptibility to erosion, collapse and sediment inputs		• All construction material and machinery should be located outside the regulated watercourse area. • Where manual labour use is impractical, positioning and operating time of the heavy machinery should pose less risk to inducing slope instabilities near the watercourse. • Rehabilitate the adjacent hillslopes/ affected regulated close to natural conditions to maintain ecohydrological integrity.
	Elevated turbidity and sediment deposition will degrade aquatic habitats, affecting water quality and flow regimes.		• Confine in-stream works to the development footprint to reduce habitat disturbance

Water Use activity	Possible causes of the impacts of the activities Impacts to the water resources	Possible Impacts to the water resource and other water users	Mitigation Measures
	Downstream sediment pulses may impact wetland water retention, infiltration and plant species composition.		- Remove construction debris and sediment barriers once works are completed and rehabilitate disturbed areas - Works within Mputi river should occur within the least minimal period as practically feasible to minimize aquatic impacts - Implement erosion and sediment-control measures. - Stabilise exposed soils and locate stockpiles away from the Mputi River, artificial dam/impoundment and associated drainage pathways.
	Deterioration of surface water quality & flow modification.		- Minimise works within the watercourses as far as practically possible. - Refuelling and maintenance of machinery must take place away from the watercourse. - Mixed cement must not be allowed to flow into any watercourses. - Drip trays must be placed under stationary construction machinery overnight to avoid soil contamination from oil and fuel leaks - Spill-response kits must be available on site. - Works within the active channel should, where practicable, be undertaken during naturally low-flow conditions. - Disturbance within the channel must be restricted to the development footprint. - Temporary flow diversions, where required, must be removed after construction.
Operational Phase			
Section 21 (c) & (i)	Impermeable structures and culverts stormwater inputs will locally accelerate flow velocities and amplify discharge, where the development is proposed		- Prevent direct discharge of concentrated runoff into the Mputi River. - Naturalization of the culvert and bank wall structures to dissipate stormwater and streamflow erosivity, respectively - Use indigenous riparian vegetation along banks and floodplains to stabilize soils, dissipate flow energy and support groundwater recharge. - Ensure that the existing services can accommodate the increase in demand.

Water Use activity	Possible causes of the impacts of the activities Impacts to the water resources	Possible Impacts to the water resource and other water users	Mitigation Measures
	Natural channel migration processes will be restricted, disrupting floodplain evolution, sediment recycling and the development of key geomorphological features		• If the services cannot service the current population, these should be expanded as part of the project specifications to avoid any future spills into the environment in the event of blockages. • Routine surveys of the pump station infrastructure by qualified Engineers to ensure the structural integrity of the infrastructure • All stormwater infrastructure and drains will be kept clear of blockages • Adequate rehabilitation of disturbed surface with indigenous vegetation to promote infiltration and groundwater recharge
	Potential contamination from an inadequate sewer system that cannot accommodate the people of the area		
	Impacts on hydrology and sediment balance of the watercourse riparian zone		
	Soil compaction and erosive run-off generation		
	Water and regulated water area contamination by potential spills		



10. Water demand and water supply

Water demand

There is no water demand information applicable to this project as it does not propose to build new bulk water infrastructure where none existed prior. The pipeline for water is going to be connected to existing services and thus will not be abstracting from any previously unlicensed watercourses. The need for water demand information would have been required had this been a Section 21 (a) water use application process, however, the development only falls under Section 21 (c) & (i).

Water supply

The proposed development will utilise municipal water supplies, connecting to existing services within the small town of Dutywa.

11. Public participation

The public participation process will be done in terms of Section 41(4) of the National Water Act (Act No.36 of 1998), from **14 September 2026 to 15 November 2026**. Once the 60-day period is complete the public participation report will be compiled and submitted to the Department.

Table 8. Outcome of public participation

Person who commented	Comments (support or object)	Reasons for objection	Applicant's response to the objection
N/A	N/A	N/A	N/A

11.1 Other authorisations applicable to the activity

The proposed development is undergoing an Environmental Authorisation Application process as per the terms of the National Environmental Management Act, 1998 (Act No. 107 of 1998), (the Act) as amended and the Environmental Impact Assessment Regulations, 2014 as amended (the Regulations). These proposed activities trigger listed activities from Listing Notice 1 (GN.R 327) and Listing Notice 3 (GN.R 324) and shall need to follow the Basic Assessment Process. The application process is currently underway and no reference number from DEDEAT is currently available until the application is logged by the Department.

11.2 Section 27 (1)

The requirements contained in Section 27(1) of the National Water Act, 1998 (Act 36 of 1998) have been considered and are discussed further below.

a) Existing lawful water uses

The proposed development is drained by the Mputi river, with associated infrastructure (access road, crossing/culvert, sewer and water pipelines) crossing the river, while the proposed stormwater design indicates that stormwater will be directed to empty into this river. The site also falls within the 500m buffer area of a dam. This dam is downstream of the proposed conference centre.

Impact of the proposed new water use on these existing uses

Contamination of the Mputi river and the dam south of the site through construction and operational activities is identified as a potential impact. Such may be in the form of high turbidity levels due to high sedimentation rates as well as hazardous substances and material spills and leaks from the sewage services underground which all alters water resources chemistry and may negatively impact on biodiversity. This type of contamination would be transported by the stream mechanisms all the way downstream to the NFEPA delineated Nqabara river and any wetlands that may be found along the floodplain.

Downstream users that may be critically impacted upon

There is a major dam directly south / downstream of the proposed development and any contamination to it could lead to the depletion of the ecosystem services of said dam, as well as a source of water for the people of the area, along with the livestock observed at the site. Another impact that could possibly occur on-site is soil compaction and subsequent erosive run-off generation as the soil won't be able to absorb stormwater fast enough or at all. There could also be impacts on the hydrology and sediment balance of the watercourse riparian zone.

The nature of the water use of the downstream users. Possible areas of ecological and national importance (e.g. heritage sites, national parks, wetlands, etc..) that will be affected downstream

The local dam downstream of the proposed development are utilised by the people and livestock in the area as a drinking water source as well as for grazing. There is also the Mputi river where the proposed access road, stormwater infrastructure and sewer pipeline will traverse. These watercourses have thriving ecosystems that would be diminished if these watercourses were to be damaged. Much further downstream of the proposed development is the sea as everything from the site eventually flows down to the NFEPA delineated Nqabara river, its estuaries and then the ocean. Therefore, there could be cumulative impacts on these watercourses further downstream through pollution and/or sedimentation caused by the construction activity at the proposed development.

Existing lawful water use in the property or any existing water use authorisation

There is no existing water use authorisation at the site, because there are currently no occupiers of the site except the existing municipal bulk sewer / water pipelines.

b) Need to redress the results of past racial and gender discrimination

The proposed development will also create employment for unskilled manual labour to carry out construction related works including but not limited to excavations, brick & pipeline laying, stormwater channelling, general works, and clean-up etc.

Extent, in terms of control and ownership, will the proposed water use contribute to the upliftment of disadvantaged groups in general, and woman in particular?

The proposed development will require a workforce to complete the conference centre as well as the accompanying services. These people do not have to be skilled as this is manual labour, thus unemployed men and women will have the opportunity to find work during the construction phase as well as during the operational phase (cleaning and maintenance). Mbhashe Local Municipality (MLM) have extensive control to be able to hire the historically disadvantaged from skilled labour such as environmental specialists and engineers, as well as unskilled labour. Women will have a variety of roles in the project from engineers, safety officers and specialists to general workers assisting on site, there will be a decent ratio of men to women working on the project.

Development area land ownership

The proposed development area is owned by the Municipality.

Does the application assist with, and promote, the redressing of past economic inequities through BEE.

The application does assist with promoting and redressing past economic inequities through BEE due to MLM, as a government organisation, are able to enforce the requirements of BEE when advertising tender work for companies to bid. Some of the points awarded to companies include more points for being a local business that is either fully or partially owned by black youth, especially women and/or the disabled who have been historically disadvantaged through the BEE initiative.

How will the approval of the application result in assisting to redress gender imbalances?

The approval of the application will assist in redressing the gender imbalances as a decent amount of women are involved with the project, such as Chimora Group, the quantity surveyors and project managers for the proposed project have women such as Ms. Ziyanda Siteto assisting in managing the overall project in coordination with Mr. Siya Tshaka, the director, as well as the engineering team from Nonxuba Consulting Engineering Services. These companies are black owned with women in prominent positions at all levels. MLM will seek to employ SMMEs with women as part of their teams for the construction phase of the project.

Women owned proportion of the BEE/HDI involvement

As a government entity MLM is not beholden to adhering to BEE/HDI initiatives but it does function within the requirements of BEE/HDI involvement as there are various black employees at all levels of municipal operations. As a municipality, there are no individual owners, however, there are female government officials from the Mayoral Committee such as Mrs. Mirriam Kungeka Makapela, Mrs. Nomvuyiseko Mgedezi, Mrs. Nolundi Gxamtswana and Mrs. Nombongo Apleni, all overseen by Municipal Manager, Mr. Mkhululi Nako (the applicant) who falls within the previously disadvantaged people of colour demographic that BEE seeks to empower. The contractor ultimately hired by MLM for this project will also be chosen based on how highly they score on their BEE/HDI involvement as well as the diversity of their ownership (whether there are women, youth and/or people of colour).

Inclusion of women and / or disabled in the BEE/HDI group

Any contractor eventually appointed for the construction phase of the project will be assessed on their inclusivity, whether there are women in positions of management and if there are any disabled individuals hired by the BEE/HDI group. The current team on the project does have diversity as the surveyor team (Chimora Group) has black men and women involved in the company, with Mr. Siya Tshaka, a black quantity surveyor overseeing the project on the consulting side. While the environmental team (Abantu Environmental Services), with their staff of black women and the director who falls within the youth category of BEE, assisting with the project, shows the diversity of the project thus far. The consulting engineers, Nonxuba Consulting Engineers are also owned by a black historically disadvantaged individual in Mr. Mahomba Nonxuba.

Management positions fulfilled by women

Although there are no currently known management positions fulfilled by women for the project from the side of the municipality, Ms. Ziyanda Siteto is assisting Mr. Siya Tshaka, the project manager from Chimora Group for this proposed development. MLM will prioritise contractors with women in management positions and/or HDI in management positions.

HDI percentage profit sharing by women

MLM as a government entity is not owned by individuals and therefore, there is no percentage profit sharing among any group of individuals.

c) Efficient and beneficial use of water in the public interest

Beneficiaries of the development

The people of the area can stand to benefit from the construction of the conference centre. Better congregating facilities will lead to an influx of intellectuals and other decision-makers for important issues, thus indirectly increasing tourism and supporting small business such as the local bed & breakfast / guesthouses in the town of Dutywa. This in-turn would assist the economy and lower the poverty rates of the area and lead to an increased quality of life.

Aquatic impacts:

Construction Phase

- Development commencement without the required environmental approvals and water use authorisation may result in legal non-compliance, project delays, and possible enforcement action against the municipality and contractors.
- Clearing and disturbance of riparian vegetation during construction may result in the localised loss of vegetation cover and associated habitat, with potential effects on bank stability and habitat structure.
- Earthworks, excavation, machinery movement and construction of the proposed crossing and associated infrastructure may physically disturb the riverbed and banks and result in localised alteration of the natural channel form and habitat characteristics.
- Vegetation clearing, exposed soils, earthworks and concentrated runoff may increase erosion of the riverbanks and surrounding disturbed areas, resulting in increased sediment input and deposition within the Mputi River and potentially within the nearby artificial dam/impoundment through sediment-laden runoff.
- Construction of the proposed crossing may alter the natural movement and distribution of surface flow within the Mputi River through temporary obstruction, diversion or concentration of flow. If not appropriately designed and constructed, the crossing may also cause localised scour or sediment

deposition and affect longitudinal ecological connectivity within the river.

- Construction activities may introduce sediment, hydrocarbons, chemicals, litter or other pollutants into the river through accidental spills, runoff or inappropriate waste handling, potentially affecting aquatic habitat.
- The proposed development may contribute cumulatively to existing pressures on the Mputi River, including road crossings, stormwater inputs, bank erosion and solid-waste accumulation. Additional habitat disturbance, runoff, sedimentation and pollution associated with the development may therefore contribute to progressive degradation of instream and riparian habitat.

Operational Phase

- Permanent hard surfaces may increase the volume and concentration of stormwater runoff during rainfall events, increasing erosion and the potential for sediment-laden runoff to enter the Mputi River.
- Leakage, rupture or failure of the sewer pipeline could result in sewage entering the Mputi River, potentially causing deterioration of water quality and associated impacts on aquatic and riparian habitat.
- Routine maintenance of the infrastructure may result in continued localised disturbance of riparian vegetation and associated habitat.

Community risk

The possible risks to the community include the increase in possible flood dynamics as the alterations at the watercourse crossing as well as added stormwater infrastructure could overwhelm the existing stream channel. The risk to the existing dam is envisaged to be minimal and only possible with very careless construction techniques, which is not anticipated. The overall quality of the water for downstream users could also be affected by the construction activity associated with the conference centre and accompanying infrastructure.

d) Socio economic impact

i) Of water use or uses if authorised:

The activity is anticipated to create an estimated 60 direct jobs and 5 jobs indirectly for the development and subsequent maintenance as indicated in **Table 9**.

Table 9. Direct and indirect job opportunities

Job Opportunities	Number of Job Opportunities	Type of employment	Affected sectors of the economy
Direct	60	60 Contract	• Construction • Maintenance
Indirect	5	5 Ad-hoc	
TOTAL		65	

ii) Of the failure to authorise water use or uses:

Were the licence is not granted, the positive implications would be the vegetation in the area would be maintained, even though this vegetation is not sensitive when it comes to biodiversity and ecosystem function. There is also a possibility of sewer spillages during the operational phase of the project, subject to sewer infrastructure not being able to accommodate the increased demand. However, the proposed conference centre would bring in more business and boost the economy of the town and overall municipality. Not granting the water use licence would deprive the modest town of Dutywa an opportunity to better the lives of its residents and overall health of the town.

e) Any catchment management strategy applicable to the relevant water resource

The proposed development falls within the Nqabara river catchment which forms part of the larger Mbashe sub-water management area. Current government objectives for managing water resources in South Africa are set out in the National Water Resources Strategy (NWRS) as follows:

- To achieve equitable access to water.
- To achieve sustainable use of water.
- To achieve efficient and effective water use.

The lack of adequate town halls / conference centres as well as the associated services in the area justifies the need for the project.

f) Likely effect of the water use to be authorized on the water resource and on other water users.

The proposed activity could affect freshwater habitats and ecological structure resulting in impacts on the biota if mitigation measures are not properly followed. The construction of access road crossings, sewer pipelines and stormwater infrastructure in a regulated water area can lead to some decrease in the geomorphological functions of the watercourse through phenomena such as sedimentation and potential contamination by any hazardous spills into the environment. Further impacts of the project on the associated water resource and water users will be assessed in the aquatic impact assessment.

g) Class and the resource quality objectives of the water resource

The project area falls within the Mzimvubu-Tsitsikamma Water Management Area, within T90A quaternary catchment. The T90A catchment area falls within the South Eastern Uplands Level 1 Ecoregion (16.06) Level 2 Ecoregion. The Mputi river forms the primary watercourse within the immediate vicinity of the proposed development. The river flows generally south-west from the project area before joining the Ngxakaxa river, after which the combined flow drains downstream into the NFEPA delineated Nqabara river (see **Figure 4**). The Mputi River is not represented as a separate Sub-Quaternary Reach (SQR) within the DWS desktop PES/EI/ES dataset; therefore, no desktop PES/EIS information is available specifically for the Mputi river.



Figure 4. The hydrological connectivity of the Mputi river within the proposed site area

h) Investments already made and to be made by the water user in respect of the water use in question

Investment has been made in the planning, design and construction of the proposed development.

i) Strategic importance of the water use to be authorised

This application is in accordance with the National Water Resources Strategy as the goals on the project are to promote sustainable use of the water resource as well as allowing for a watercourse that can continue to be accessible to the public.

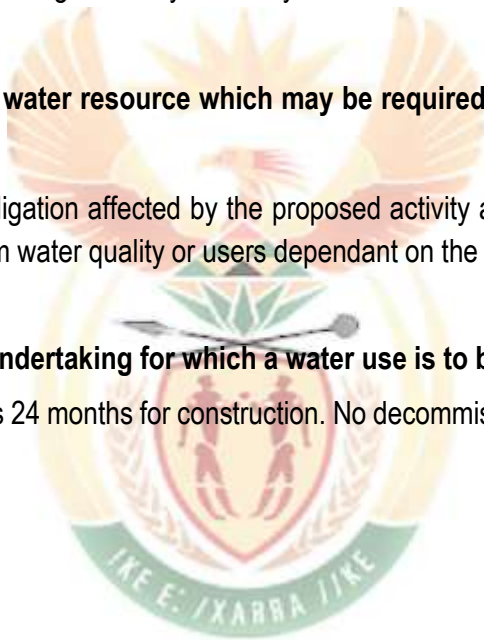
The construction of the conference centre and associated infrastructure will improve the overall quality of life for the people of the town of Dutywa. Motivated and healthy people can be useful and productive for the municipality, producing more economically active individuals to cater to the people holding conferences in the town throughout the year. Ultimately indirectly promoting a healthy economy in the overall municipality.

j) The quality of water in the water resource which may be required for the Reserve and for meeting international obligations

There will be no International Obligation affected by the proposed activity and it is not envisaged to have any significant impacts on downstream water quality or users dependant on the water, specifically the local dam.

k) Probable duration of any undertaking for which a water use is to be authorised

Maximum duration is applied for is 24 months for construction. No decommissioning phase is anticipated for the development.



12. Declaration by the applicant with signature confirming that the information submitted is correct

DECLARATION OF APPLICANT

I, declare that –

- I am, or represent¹, the applicant in this application;
- All the particulars furnished by me in this form are true and correct;

Signature on behalf of the applicant

Name of company

Click or tap to enter a date.

Date

[END OF WATER USE LICENCE APPLICATION SUMMARY]



¹ If this is signed on behalf of the applicant, proof of such authority from the applicant must be attached. If the applicant is a juristic person, a signature on behalf of the applicant is required as well as proof of such authority.